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JUDGMENT SHEET

LAHORE HIGH COURT LAHORE
(JUDICIAL DEPARTMENT)

Writ Petition No.6343 of 2026

M/s Popular International (Pvt.) Ltd.

Versus

Government of Punjab through its Secretary Health and others

Petitioner by:- Mr. Yasir Akram Qureshi, Advocate.

Respondents by: Barrister Muhammad Arsalan Nazar and
Mr. Shehbaz Rehmat, Advocates for
respondent No.2.
Mr. Abdul Rehman Goraya, Advocate for
respondent No.3.
Mr. Bilal Ahmad, Advocate for respondent
No.5.
Mr. Mohammad Osman Khan, Assistant
Advocate General, Punjab.
Nemo for respondent No.6.

Date of hearing: - **16.02.2026**

JUDGMENT

RAHEEL KAMRAN, J.: Through the instant petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “Constitution”), the petitioner calls in question the *vires* of order dated 15.12.2025 passed by the Managing Director, Punjab Public Procurement Regulatory Authority, Lahore (hereinafter to be referred as the “MD PPRA”). By virtue of the impugned order, seven representations including that filed by respondent No.6, were disposed of whereby the decisions of the Technical Evaluation Committee (TEC) as well as Grievance Redressal Committee (GRC) constituted by the Procuring Agency i.e. Lahore General Hospital, Lahore were set aside to

the extent of the items quoted by the complainants and the Procuring Agency was directed to re-constitute the Grievance Redressal Committee for fresh decision.

2. Factual matrix of the matter as gathered from the contents of the petition is that the Government of Punjab through the concerned department initiated a procurement process in April 2025 by issuing an E-Tender Notice for framework contracts relating to bulk purchase of medical devices including surgical disposable items, implants and sutures for the tender year 2025-2026. In response thereto, the petitioner along with other firms including respondent No.6 submitted its bid along with requisite documentation and samples in accordance with the prescribed bidding documents. The bids were subjected to technical evaluation by the TEC and respondent No.6 was declared responsive. Feeling aggrieved by the outcome of the technical evaluation in respect of certain items the petitioner invoked the remedy of representation before the GRC. The GRC modified the order of the TEC. Thereafter, respondent No.6 and certain other bidders assailed the decision of the GRC before the MD PPRA by filing complaints under the relevant procurement rules. The petitioner also submitted written arguments before the MD PPRA supporting the decision of the GRC and relying upon judgments of this Court. Vide impugned order dated 15.12.2025, the MD PPRA set aside the decisions of the TEC and GRC to the extent of items quoted by complainants and directed the Procuring Agency to re-constitute the GRC for a fresh decision. The petitioner, being aggrieved of the said order, has invoked the constitutional jurisdiction of this Court.

3. Learned counsel for the petitioner contends that the MD PPRA exceeded its statutory mandate by unsettling the findings of the GRC without identifying any violation of the Punjab Procurement Rules, 2014 or procedural irregularity in the procurement process. It is argued that the observation regarding absence of “scientific backing” is vague and unsupported by technical material. Learned counsel submits that the

GRC rendered a reasoned decision after affording opportunity of hearing and in the absence of *mala fide*, mis-procurement or illegality, the MD PPRA could not have interfered. He further argues that the impugned order runs contrary to earlier judgments of this Court wherein interference with technical determinations was declined and that the direction to reconstitute the GRC is without lawful basis and offends Articles 4 and 10-A of the Constitution.

4. Learned counsel for respondent No.5 as well as learned Assistant Advocate General, Punjab support the impugned order for the reasons recorded therein.

5. Having heard learned counsel for the parties and having perused the record, the pivotal question for determination is whether the MD PPRA acted within the bounds of statutory authority while setting aside the decisions of the TEC and the GRC to the limited extent of the disputed items and directing reconstitution of the GRC with inclusion of independent technical members. Resolution of this controversy necessarily requires examination of the statutory scheme embodied in the Punjab Procurement Regulatory Authority Act, 2009 (the “Act, 2009”) and the Punjab Procurement Rules, 2014 (the “Rules, 2014”). The Act and the Rules *ibid* reflect a structured regulatory framework designed to ensure transparency, competition, fairness, value for money and accountability in public procurement¹. These provisions collectively demonstrate that procurement decisions are not left to unregulated administrative discretion but are structured within a hierarchy of accountability mechanisms. In furtherance of this framework, Rule 67 mandates constitution of a Grievance Redressal Committee as an internal remedial forum for aggrieved bidders. The said mechanism, however, operates within the supervisory domain of the Authority and the MD PPRA is empowered to examine representations/complaints against decisions of the GRC and its decision on such representation or

¹ **Section 5** of the Punjab Procurement Regulatory Authority Act 2009 and **Rules 4, 10 and 34** of the Punjab Procurement Rules 2014.

complaint shall be final² within the statutory hierarchy provided under the Rules. Therefore, the GRC functions within, and not outside, the supervisory domain of PPRA.

6. The impugned order reveals that the MD PPRA did not merely disagree with the merits of the technical evaluation, rather it expressed concern that certain rejections were premised upon end-user feedback allegedly lacking “scientific evidence-based backing.” The MD PPRA further observed that the procuring agency is not authorized to conduct clinical trials and that exclusion of products possessing internationally recognized certifications, including those acknowledged by the Drug Regulatory Authority of Pakistan, may restrict competition and tilt the process in favour of selected bidders. These observations were not made in abstraction but were recorded in the backdrop of repeated complaints of similar nature, including one previously adjudicated by PPRA and upheld by this Court in Writ Petition No.15669 of 2025. Thus, the impugned direction was rooted in a discernible regulatory concern regarding structural fairness in technical evaluation.

7. The contention that PPRA assumed appellate jurisdiction over technical findings is not borne out from the record. The MD PPRA neither declared any bidder responsive nor non-responsive. It confined itself to setting aside the impugned decisions only to the extent of the items quoted by the complainants and directed reconsideration by a reconstituted GRC comprising independent technical experts and a representative of the administrative department. Such direction is procedural and remedial in character. It aims to ensure that technical objections are evaluated by a body whose composition dispels any reasonable apprehension of institutional bias.

8. It is an admitted position that the original TEC and the GRC were constituted exclusively from officials of the same procuring agency. The procurement in question pertains to specialized medical devices and surgical disposables—items requiring technical objectivity

² Rule 67A of the Punjab Procurement Rules 2014.

and adherence to recognized standards. When objections to technical rejection are examined by officers belonging to the same institutional hierarchy that undertook the initial evaluation, the perception of neutrality may be diminished. In administrative law, the test is not actual bias but reasonable likelihood of bias. The principle that justice must not only be done but must also appear to be done applies with equal vigour to procurement adjudication.

9. The petitioner's argument that the MD PPRA could not have interfered with the composition of a duly constituted GRC overlooks the broader regulatory mandate under the Act, 2009. The Rules 2014 do not prohibit inclusion of independent experts in the GRC. In absence of an express statutory bar and where the direction is aimed at reinforcing transparency and technical competence, such supervisory intervention cannot be termed *ultra vires*. Regulatory oversight inherently includes authority to remedy structural deficiencies that may compromise fairness.

10. The observations in the impugned order regarding absence of "scientific backing" and impropriety of conducting informal clinical assessments must be understood in the procurement context. Clinical trials are regulated processes requiring compliance with ethical protocols and statutory approvals. A procuring agency cannot substitute such regulated mechanisms with informal end-user assessments lacking regulated clinical methodology to determine product suitability, particularly where products otherwise conform to specifications and possess recognized certifications. The MD PPRA's concern, therefore, was directed toward safeguarding competitive neutrality and preventing exclusionary practices inconsistent with procurement law.

11. Much emphasis has been placed by the learned counsel for the petitioner upon the order dated 11.12.2023 passed by this Court in Writ Petition No.66397 of 2023 titled *M/s Popular International (Pvt.) Ltd. v. Government of Punjab and others*, wherein this Court declined to interfere with the minutes of meeting of a Grievance Redressal

Committee and observed that in constitutional jurisdiction the Court does not sit as an appellate forum to substitute its opinion for that of a committee comprising technical experts. A careful reading of the said order, however, reveals that the challenge therein was directed against the minutes of meeting of the GRC itself, and the Court was examining the matter in exercise of its power of judicial review under Article 199 of the Constitution. The *ratio* of that judgment was confined to the well-settled principle that this Court ordinarily refrains from re-evaluating technical determinations made by expert bodies, unless *mala fide*, arbitrariness or procedural illegality is established. The present case stands on an entirely different footing. Here, the impugned order has not been passed by a technical committee, rather, it is an order of the statutory regulator i.e., the Managing Director, Punjab Public Procurement Regulatory Authority, exercising supervisory jurisdiction under the Act, 2009 and the Rules 2014. The MD PPRA has not substituted its own technical findings nor declared any bid responsive or non-responsive. Instead, it has identified structural concerns relating to absence of scientific evidence-based evaluation, potential exclusion of products possessing recognized certifications and possible institutional bias arising from the composition of the grievance forum and consequently directed reconstitution of the GRC for fresh consideration. Therefore, the principle laid down in W.P. No.66397 of 2023—that this Court does not substitute its opinion for that of expert committees—does not curtail the statutory oversight powers of PPRA, nor does it render immune from regulatory scrutiny a grievance redressal process that may suffer from structural infirmities. The reliance placed upon the said order is thus misplaced and distinguishable on facts as well as in law.

12. Public procurement involves expenditure of public funds and must conform to constitutional guarantees of fairness and equal treatment. Articles 4 and 10-A of the Constitution are attracted where administrative action finally determines rights or entails civil consequences. In the present case, the impugned order does not finally

determine *inter se* rights of the parties but it merely mandates fresh evaluation through a reconstituted and technically strengthened forum. No vested right of the petitioner stands extinguished. At best, the petitioner is required to participate in a renewed grievance redressal process consistent with law.

13. The supervisory direction issued by PPRA is thus regulatory, precautionary and process-oriented. It neither amends the statutory framework nor substitutes technical discretion with its own assessment. Instead, it fortifies the grievance redressal mechanism by ensuring independence and technical competence. In constitutional jurisdiction under Article 199, this Court does not sit as an appellate forum over administrative discretion unless jurisdictional defect, *mala fide*, patent illegality or violation of law is demonstrated. None has been established in the present case.

14. For the foregoing reasons, this Court finds that the impugned order dated 15.12.2025 does not suffer from any jurisdictional infirmity or legal perversity. The petition in hand being devoid of merit, is accordingly dismissed.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE

*Azhar**